

DHS response before the Board

Position and summary

DHS asks the Board to dismiss A.R.M.'s appeal and affirm the October 22, 2024 decision. The immigration judge credited important portions of the past account, identified weaknesses in future risk, considered formal and practical country evidence, and found the more-likely-than-not burden unmet. DHS argues that the appeal repackages evidentiary disagreement as legal error.

The response relies only on the agency evidence and does not dispute that P-7 was lodged before the hearing and admitted without an authenticity or timeliness objection. It addresses aggregation, official acquiescence, conditions evidence, relocation, and the requested remand.

Standard of review

DHS states that the Board reviews factual findings for clear error and legal questions de novo. Predictions about future events and findings concerning likely government response are factual, while the governing definitions and burden are legal. A.R.M. must identify a legal misstatement or a clearly erroneous factual premise rather than ask the Board to reweigh every exhibit.

The response acknowledges that all relevant CAT evidence must be considered. It argues that a decision need not discuss every line so long as the path of reasoning is discernible and the material evidence is not ignored.

Treatment of multiple feared sources

DHS agrees that risk cannot be rejected merely because it comes from more than one source. It contends, however, that the judge reasonably analyzed the evidentiary support for Unit Four, Harbor League, and registry personnel and found the asserted links too speculative to form a likely chain. The references to each source standing alone should be read in that context.

No numerical evidence showed how often a return notification reaches Unit Four, how often a contractor provides a lead, or how often either results in severe harm. DHS argues that aggregation does not permit uncertainty to be treated as proof.

Unit Four evidence

The response accepts the credited past detention for purposes of appeal but emphasizes changed circumstances: lawful departure, elapsed time, no open-case document, no current flag, and no direct contact before the agency hearing. Formal custody controls and potential discipline provide additional contrary evidence.

DHS argues that past mistreatment is relevant but does not compel a finding about future torture. The judge acknowledged motive and data access, then found renewed questioning possible but qualifying harm below the required probability. That finding is not clearly erroneous, according to DHS.

Harbor League and registry evidence

The July speakers were unidentified and wore no official insignia. Contact overlap with a dispatch office does not establish that Harbor League acts with Unit Four. Registry audit samples show capability and some unsupported queries but no record for A.R.M. and no proof that registry staff intend harm.

DHS argues that two uncertain enabling links cannot create a likely official-torture event. It does not contend that contractors or registry staff must personally inflict every injury; it contends that the evidence connecting their actions to future Unit Four conduct remains too weak.

Complaint routing and awareness

DHS acknowledges that the complaint went to the Merrow regional command and that the visible file contains no independent interview. It argues that the record does not identify who reviewed the complaint, what the unit response said, or whether a senior official anticipated future torture. Institutional receipt is not necessarily awareness of planned severe harm.

The response also notes that A.R.M. did not use the national inspector hotline. DHS treats that as evidence that available protective mechanisms were not exhausted, not as a formal prerequisite to CAT protection.

Formal safeguards and willful blindness

Kalyrian law prohibits torture, requires custody records, operates an external desk and hotline, and reports disciplinary action. DHS argues that the judge properly treated those safeguards as evidence about likely official response. Varo's small municipal sample does not establish national indifference.

DHS disputes that the judge required express approval as a matter of law. It reads the decision as finding the evidence insufficient to show awareness or willful blindness in the future. The absence of a file-specific independent interview is concerning but does not compel the opposite result.

Country expert limitations

Varo used coded interviews, a selected forty-file sample, and incomplete discipline data. The expert acknowledged no personal flag, no nationwide Unit Four surveillance, and no universal Harbor League command structure. DHS argues that the judge summarized and reasonably discounted those limits.

The institutional map may describe a possible sequence, but a possible sequence is not necessarily more likely than not. DHS contends that the decision's failure to reproduce the map in detail is not proof that the evidence was ignored.

Medical and corroborative materials

The clinician's findings support consistency with past soft-tissue injury and trauma symptoms but do not identify a perpetrator or predict future events. S.M. did not observe the detention. Pel authenticated codes and formats but could not identify a particular reader of the complaint.

DHS argues that the judge gave these materials appropriate weight. Crediting past injury does not eliminate the need for current evidence about likely future conduct and official response.

Relocation

The evidence shows free movement between provinces, short-term lodging, and no proven continuous national surveillance by Unit Four. Registered employment may expose information, but the record does not show that every provincial query reaches the Merrow command. DHS argues that relocation therefore remains relevant contrary evidence.

The decision did not hold that A.R.M. must live indefinitely without services. It found that distance from Orin Vale could reduce exposure and weighed that possibility with all other facts. DHS asks the Board to leave that factual assessment undisturbed.

No basis for Board factfinding

If the Board identifies ambiguity in one paragraph, DHS asks it to read the decision as a whole rather than make new factual findings. The judge heard every witness, stated the exhibit rulings, credited the central past event, and supplied a reason for the future-risk conclusion.

DHS opposes remand because it views the asserted aggregation and acquiescence errors as disagreement with weight. In the alternative, any remand should be limited to clarifying analysis on the existing evidence, with no admission of post-hearing material.

Conclusion and service

DHS requests dismissal of the appeal and affirmance of the CAT denial. The response does not ask the Board to disturb the admission of P-7, the credited past detention, or the documented complaint route. It argues that those facts, considered with contrary evidence and source limits, do not satisfy the future burden.

The institutional trial attorney certifies service on A.R.M.'s counsel and certifies that this twelve-page response cites only agency evidence. It contains no expanded personal name, address, or post-hearing factual submission.